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Newsom calls special session to 'Trump-proof' California

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Gov. Gavin Newsom on Thursday called newly elected state lawmakers to work as soon as they're sworn in on Dec. 2 for a special session to "safeguard California values" as the state prepares — again — to be a liberal antagonist to the upcoming Trump administration.

In other words: Gear up for lawsuits.

In a proclamation declaring the special session, Newsom said he wants the Legislature to approve funding for the Department of Justice and other state agencies to "immediately file affirmative litigation."

Legislative sources said the special session is intended to be narrowly focused on providing legal resources to the attorney general's office — perhaps as much as $100 million — to fight the Trump administration. The goal is to appropriate the money before President-elect Donald Trump is sworn in on Jan. 20, though given how many new members are joining the Legislature, they may not be ready to act until early January.

As priorities for California's opposition, Newsom listed civil and reproductive rights, climate change, Trump's threats to withhold disaster relief dollars and the potential repeal of deportation protections for immigrants who were brought to the country without authorization as children.

"The freedoms we hold dear in California are under attack — and we won't sit idle," Newsom said in a statement. "California has faced this challenge before, and we know how to respond."

It appears that Trump won't sit idle either. A day after Newsom's announcement, the president-elect posted on his Truth Social account that "Governor Gavin Newscum is trying to KILL our Nation's beautiful California" and "stopping all of the GREAT things that can be done to 'Make California Great Again.'"

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Trump suggested he would go after "INSANE POLICY DECISIONS," such as how California distributes its water and the higher mileage requirements for vehicles sold here, and demand voter identification in future elections, providing an early map for likely clashes between the state and his administration.

The Democratic leaders and budget committee chairpersons in both houses of the Legislature are on board with the special session, expressing support for Newsom's proclamation, but no detailed proposal has yet been introduced. The special session would start Dec. 2 when the new Legislature convenes, though lawmakers wouldn't necessarily

pass any bills immediately.

"We learned a lot about former President Trump in his first term — he's petty, vindictive, and will do what it takes to get his way no matter how dangerous the policy may be," Senate President Pro Tem Mike McGuire, a Santa Rosa Democrat, said in a statement. "California has come too far and accomplished too much to simply surrender and accept his dystopian vision for America."

Republican lawmakers quickly denounced the governor's order as divisive political theater that does nothing to address the real problems facing Californians and merely boosts what many interpret as Newsom's own future presidential aspirations.

Assembly Republican leader James Gallagher called the session a "shameless political stunt." "The only 'problem' it will solve is Gavin Newsom's insecurity that not enough people are paying attention to him," he said in a statement. "There will not be a single policy implemented in this special session that couldn't be addressed when the Legislature reconvenes in January."

But Assemblymember Jesse Gabriel, an Encino Democrat who leads the Assembly Budget Committee, said the state needs to move quickly to be ready if the Trump administration follows through on threats to withhold federal funding from California or other policies attacking the state.

"In litigation, speed matters and preparation matters," he told CalMatters. "This is an important idea."

Gabriel — an attorney who, before running for office, represented immigrants who sued the Trump administration over its move to end a program shielding them from deportation — said many legislators also feel a personal duty to address the fear and anxiety they are hearing from their constituents about the outcome of the election.

"They can tell you they want you to focus on everyday, kitchen table issues that matter to working families and at the same time, fight back," he said. "We're going to have to walk and chew gum at the same time."

Attorney General Rob Bonta told CalMatters last week that his office is already writing legal briefs in preparation for lawsuits against possible Republican attempts to ban abortion nationwide, overturn California's commitment to zero-emission vehicles and repeal the Deferred Action for Childhood Arrivals program for immigrants.

During the last Trump administration, California sued the federal government more than 100 times over its regulations. Most of those lawsuits were successful.

"We bring cases when we believe we will win," Bonta said at a press conference Thursday. "We will be asking for sufficient resources to fight back against the attacks that we expect from the Trump administration."

This is the third special session that Newsom has called since October 2022. The two previous ones focused on gas prices and the oil industry, including one that just wrapped up last month.

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